

Court No. - 21

Case :- WRIT - C No. - 17081 of 2022

Petitioner :- Deepak Gupta

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- P.K. Upadhyay, Kalpna Upadhyay, Vikram Yadav

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Sameer Jain, J.

The instant petition has been filed praying for quashing of an order dated 28.2.2022 issued by respondent No. 4 determining a sum of Rs. 43,69,122/- as the amount of electricity charges payable by the petitioner on basis of an inspection made at his premises on 26.2.2022. The notice calls upon the petitioner to deposit the amount assessed against him, failing which, proceedings under Sections 3 of U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 will be initiated against the petitioner.

The submission is that the procedure adopted by the respondents is wholly illegal. No provisional assessment notice was served upon the petitioner nor any explanation was sought and straightaway, the impugned order assessing the amount has been passed.

Learned counsel appearing on behalf of respondent Nos. 2 to 6 is not in a position to support the impugned order and fairly states that in case, the petitioner submits objection to the impugned notice treating it to be an order of provisional assessment, his explanation will be considered and final decision will be taken in the matter.

We are of the opinion that aforesaid course, as suggested by learned counsel for the respondents, if adopted, will sub-serve the ends of justice.

Accordingly, we ***dispose off*** the instant petition by providing that the impugned order shall be treated to be an order of provisional assessment and the petitioner will file his objections within two weeks from today and thereafter, respondent No. 3 will proceed in accordance with the procedure provided under the Electricity Act, 2003 and U.P. Electricity Supply Code, 2005 for passing an order of final assessment.

Till final assessment is made, **no coercive measure** shall be taken against the petitioner on basis of impugned notice.

Order Date :- 15.6.2022

Ankita

(Sameer Jain, J.)

(Manoj Kumar Gupta, J.)